

3.

CASE #	CASE NAME	HEARING NAME
CVPS2405375	PELAYO VS FORD MOTOR COMPANY	MOTION FOR ATTORNEYS FEES BY CLEMENTE PELAYO

Tentative Ruling:

No opposition filed.

Plaintiff's Motion for Attorney's Fees, Costs and Expenses GRANTED.

Plaintiff awarded \$24,210 in costs + \$637.18 in costs for a total of \$24,847.18.

No award for anticipated time for completion of this motion as no opposition was filed.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509063	VEASEY VS SRACSO	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: Each protective order statute requires that the motion be "accompanied by a meet and confer declaration under Section 2016.040." (CCP §§ 2030.090(a); 2031.060(a); 2033.080(a).) Section 2016.040, in turn, requires that the declaration state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (CCP § 2016.040(a).)

At the time the motion was filed, Defendants had failed to satisfy their meet and confer requirement. Defendants' counsel submitted a declaration which reflected only a single written communication, with no effort to follow up. The court's June 8, 2026 order found this meet and confer effort insufficient and continued the hearing to allow the parties to conduct a meaningful meet and confer.

Following the court's order, the parties conducted a telephone meet and confer on June 25, 2026. However, the supplemental declaration filed by Defendants' counsel does not comply with the Court's June 8, 2026, order. It states only that counsel met by telephone, that Plaintiff would not change position, and that counsel would report the results to the court. (Horwitz Decl. 2:4–8.) The declaration does not identify the specific discovery requests discussed, the issues remaining in dispute, or the parties' respective positions on each issue.

The court's June 8, 2026 order required moving party, after meeting and conferring, to vacate the hearing, file a joint declaration identifying the specific outstanding disputes and the parties' respective positions, or file a sworn declaration if Plaintiff refused to respond or cooperate. (Court's Minute Order dated June 8, 2026.)

The supplemental declaration therefore does not comply with the court's specific directive. Without identification of the specific disputed discovery requests and the parties' positions on each, the court cannot evaluate whether further informal resolution is possible or craft targeted relief.

Improper Legal Authority:

Even if the meet and confer were adequate, the motion would still fail because Defendants cite a nonexistent statute and omit the statute governing RFPs. In their motion, Defendants invoke only CCP §§ 2030.090 or 2033.090. This is defective.

First, there is no section 2033.090. The Civil Discovery Act's provisions governing RFAs run from section 2033.010 through section 2033.080, and then resume at section 2033.210 *et seq.* for response and motion procedures. The protective-order vehicle for RFAs is section 2033.080 and the motion to compel further responses vehicle is section 2033.290. Defendants have therefore not invoked any valid statutory basis for protective-order relief as to the RFAs.

Second, Defendants do not cite section 2031.060, which is the exclusive protective-order vehicle for RFPs. (CCP § 2031.060(a).) "A basic principle of motion practice is that the moving party must specify for the court and the opposing party the grounds upon which that party seeks relief," and "the trial court may consider only the grounds stated in the notice of motion." (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125; see also CCP § 1010; CRC Rule 3.1110(a).) An omission may be overlooked only if the supporting papers make the grounds clear. (*Luri, supra*, 107 Cal.App.4th at 1125.) Here, nothing in the notice or memorandum invokes section 2031.060 or identifies any statutory basis for protective-order relief as to the RFPs propounded to each of the three Defendants.

Good Cause:

The court, for "good cause" shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (CCP §§ 2030.090(b); 2031.060(b); 2033.080(b).) These sections condition relief on a showing of "good cause." Section 2017.020(a) likewise allows the court to limit discovery "if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (CCP § 2017.020(a).) This requires the court to weigh burden against likely benefit. The court cannot perform that weighing without request-specific evidence.

Here, Defendants have failed to make the required showing. The Horwitz Declaration recites that "Plaintiff's discovery is, unduly burdensome, intrusive, and not proportional to the need of this case" and that "[t]he discovery requests, consist of (204) two hundred four pages." (Horwitz Decl. 3:15–18.) However, the declaration does not quantify the time, cost, or other burden imposed by any specific interrogatory, RFA, or RFP. Nor does it identify any individual request to be limited, stricken, or modified. Aggregate page count, standing alone, does not constitute "good cause." Without a request-specific evidentiary showing, the court has no basis on which to fashion any order "justice requires." The supplemental declaration filed June 25, 2026, likewise, provides no request-specific analysis or quantification of burden.

Request for Sanctions:

Defendants' request for sanctions is denied. Each cited protective-order statute provides that "the court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP §§ 2030.090(d);

2031.060(h); 2033.080(d).) Because Defendants are the unsuccessful moving party, they are not entitled to sanctions.

Moreover, the court expressly advised the parties in its June 8, 2026 order that failure to engage in a good faith meet and confer process or failure to file a joint declaration as ordered would result in sanctions under CCP § 177.5. While Defendants' counsel did conduct a telephone conference and filed a declaration reporting that conference, the declaration fails to comply with the court's specific directives to identify the outstanding disputes and the parties' positions on each issue.

Motion for Protective Order DENIED.

Request for Sanctions DENIED.

Case Management Conference continued to 11.19.26. The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel addressing whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management statement shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509943	DOE VS INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF JANE DOE BY INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA

Tentative Ruling:

Motion to Strike is MOOT based on the court's ruling on the demurrer to the First Amended Complaint.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2509943	DOE VS INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA	DEMURRER ON 1ST AMENDED COMPLAINT OF JANE DOE BY INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions